

****Police Report****

****Odsherred Municipality Recommended for Fine****

****Date: 11-01-2024****

****Decision****

****Public Authorities****

****Police Report****

****Reported Breach of Personal Data Security****

****Processing Security****

****Children****

****Sensitive Information****

****CPR Number****

The Danish Data Protection Agency has reported Odsherred Municipality to the police, as the agency assesses that the municipality has not met the requirements for an appropriate level of security under the General Data Protection Regulation (GDPR). Odsherred Municipality has been recommended for a fine of 100,000 DKK - 200,000 DKK for failing to establish sufficient and appropriate security measures.

The Data Protection Agency became aware of the case when Odsherred Municipality reported a breach of personal data security on September 1, 2022. It was revealed that a work computer containing sensitive personal data, information about CPR numbers, and information about children had been stolen during a burglary at an employee's home. The computer's hard drive was not encrypted.

During the processing of the case, the Data Protection Agency found that Odsherred Municipality had, for several years, at least from May 18, 2018, until September 10, 2022, failed to ensure the encryption of approximately 1,200 laptops used by the municipality, which the Data Protection Agency considers a serious violation of the regulation's requirements for processing security.

****Requirement for Appropriate Security****

Data controllers are obligated to ensure that the information being processed does not come to the knowledge of unauthorized persons. It is relatively simple to access files stored on a laptop when the hard drive is not encrypted - for example, by moving the hard drive to another computer. Furthermore, the agency assesses that stolen mobile devices are increasingly being examined for personal data such as credit card information and CPR numbers before being sold on. This is partly due to the growing underground market where such types of information can be resold, and partly due to the increased digitization of society in general, which expands the opportunities for the exploitation of personal data.

Encryption of personal data is a commonly recognized security measure and is specifically mentioned as an example of a technical measure in the General Data Protection Regulation. The Data Protection Agency believes that encryption of portable devices (including laptops) where personal data is processed must be considered not only relevant but also often both a necessary and required security measure.

"As citizens, we cannot opt out of the municipality processing our information. Therefore, it is particularly important that we can be assured that they are well protected. Unfortunately, this has not been the case in this matter, where a basic measure such as encryption has been lacking - not only on the computer that was stolen but on all of the municipality's computers. We take this very seriously," says Ditte Yde Amsnæs, Head of Department at the Data Protection Agency.

The Data Protection Agency has previously recommended fines in similar cases regarding the lack of encryption of portable devices. Here you can read about Favrskov Municipality, Gladsaxe Municipality, Hørsholm Municipality, and the Civil Affairs Agency.

****Recommendation for Fine****

The Data Protection Agency always conducts a specific assessment of the severity of the case

pursuant to Article 83, paragraph 2, of the General Data Protection Regulation when evaluating which sanction, in the agency's opinion, is appropriate.

In assessing that a fine should be imposed, the Data Protection Agency has emphasized that Odsherred Municipality had not encrypted the hard drives of the municipality's 1,200 laptops prior to September 10, 2022. Furthermore, the agency has emphasized that ensuring encryption of portable devices, including computers, is a significant and fundamental security measure. Additionally, encryption must be considered a commonly used technology that has been best practice since 2007. The agency has further noted that encryption has long been a widespread and recognized general technical measure that should easily be addressed by the data controller.

****Want to Know More?****

You can read more below about the recommendations and requirements for disk encryption on devices issued to employees:

- Security measures that can prevent breaches of personal data security in case of loss/theft of portable devices with unencrypted data
- The Association of Danish Municipalities' (KL) recommendations from 2022 on technical minimum standards in municipalities
- Guidance on Cybersecurity while Traveling – the organization's responsibility, Center for Cybersecurity, January 2022
- National Strategy for Cyber and Information Security, Ministry of Finance, May 2018
- NIST SP 800-111, Guide to Storage Encryption Technologies for End User Devices
- Technical minimum requirements for government authorities 2023, sikkerdigital.dk

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